

EXHIBIT BUNDLE

SITE DAILY LOG, CRANE LIFT RECORD AND DELIVERY DOCUMENTATION

14 November 2023

Exhibit references	SDL/14 (site daily log); CR/14 (crane lift record); DN/14 (delivery notes); PTW/7 (permit to load)
Issue	Whether lifting operations were suspended at 10:40, whether and on whose authority they recommenced, and what was actually landed on LB-7.

PART 1 — SITE DAILY LOG (exhibit SDL/14)

Bound A4 book, sequentially numbered pages, page 402. Entries in manuscript. Reproduced as written, including the strike-through at 11:05 which appears in the original.

Time	Entry	Initials
07:00	Site open. 34 operatives on site. Weather: dry, windy.	RDH
07:15	Daily briefing. Cladding to L7 priority this week.	RDH
08:05	Crane ops commenced. Lift 1.	RDH
09:21	FK on site.	RDH
09:34	Visitor to site (see gatehouse).	(none)
10:40	Lifting ops SUSPENDED - high wind. Instruction of FK.	FK
11:05	Lifting ops resumed following reassessment [entry struck through; struck-through text remains legible; no initial against the strike-through]	RDH
11:22	INCIDENT. Collapse east elevation L7. Emergency services called.	RDH
11:31	Panel delivery received (see DN 8841).	RDH
11:58	Fatality confirmed. Site closed. HSE notified.	RDH

HSE observations: (i) the entry at 10:40 is in a different hand and different ink from the surrounding entries and is initialled FK, consistent with Ms Kettleborough's account that she made it herself; (ii) the entry at 11:05 has been struck through with a single line; the underlying text remains legible; there is no initial, date or reason against the deletion, contrary to Meridian procedure MSL-PR-11 which requires all corrections to be initialled and dated; (iii) the entry at 11:31 records a delivery being received nine minutes after the collapse and after the site was closed; (iv) no entry records any authority to resume lifting, as required by lifting plan clause 6.5; (v) the page has been photographed in situ by DC Mbeki-Farnworth; the book was seized on 22 November 2023.

PART 2 — CRANE LIFT RECORD (exhibit CR/14)

Automatic data logger, Liebherr 154 EC-H, crane serial 154-EC-H-88213. Data downloaded by the crane hire company, Vantage Lifting Solutions Ltd, on 16 November 2023 and provided to HSE. This record is machine-generated and is not dependent on any human entry.

Lift no.	Hook load engaged	Load released	Max load (kg)	Slew arc	Radius (m)
L-08	09:44:12	09:52:38	1,214	112° to 218°	31.2
L-09	10:01:55	10:11:02	1,211	112° to 218°	31.2
L-10	10:18:40	10:27:19	1,209	112° to 218°	31.2
L-11	10:33:02	10:39:47	1,216	112° to 218°	31.2
—	(no hook load engaged 10:39:47 to 11:13:26)				
L-12	11:13:26	(not released)	1,218	112° to 221°	31.4
—	SHOCK LOAD EVENT / ANTI-TWO-BLOCK ALARM 11:22:04				

The critical inference available from CR/14. Lifting stopped at 10:39:47 and did not resume until 11:13:26 — a gap of 33 minutes and 39 seconds. That is consistent with a suspension at or about 10:40 and a resumption at or about 11:13. Lift L-12 was still engaged at the moment of collapse. The crane record therefore corroborates Ms Kettleborough on the suspension, corroborates Mr Aksoy on the resumption, corroborates the struck-through log entry at 11:05, and is inconsistent with the

absence of any recorded authority to resume.

The crane driver. The crane was operated by Mr Idris Kavanagh-Mbatha of Vantage Lifting Solutions Ltd. He provided a short statement on 28 November 2023 in which he said: 'I was told over the radio to carry on. I do not know who by. I assumed it was the AP because that is who gives that instruction.' He was not asked to listen to voice samples. He emigrated to Australia in June 2024 and has not responded to correspondence. Consideration is being given to s.116 CJA 2003.

PART 3 — DELIVERY NOTE 8841 (exhibit DN/14)

Field	Entry
Supplier	Ardenwood Precast Ltd, Rotherham
Delivery note no.	8841
Goods	6 no. type PC-4 architectural cladding panels, 605 kg each
Vehicle arrival at gatehouse (gate log)	10:52
Signed as received	11:31
Signature	'R D-H'
Driver's own tachograph departure	12:47

The delivery signed for at 11:31 cannot be the load on the hook at 11:13:26, which had already been delivered to site. Ardenwood's despatch records show delivery note 8840 (also 6 panels) arriving at 07:41 on 14 November 2023. Two panels from that earlier delivery are unaccounted for in the recovery inventory and are presumed to be the panels on the hook.

PART 4 — PERMIT TO LOAD PTW-BW-0217 (exhibit PTW/7)

Field	Entry
Permit no.	PTW-BW-0217
Activity	Loading of cantilevered loading bay LB-7, level 7 east
Valid from	14 November 2023, 08:00
Valid to	14 November 2023, 16:00
Pre-conditions (printed on form)	(a) valid TW design check certificate on register; (b) signed scaffold handover received; (c) SWL signage displayed; (d) wind assessment recorded
(a) certificate reference entered	TWDC-BW-07
(b) handover reference entered	TL/BW/INSP/113
(c) SWL displayed	[tick]
(d) wind assessment	[tick]
Issued by (Permit Issuing Officer)	R. Delacroix-Hale
Accepted by (person in charge of task)	[BLANK]
Permit returned / closed	[BLANK]

The permit was issued by Mr Delacroix-Hale in his capacity as Permit Issuing Officer, relying on a certificate (TWDC-BW-07) which the prosecution says he created on the evening of 13 November 2023, and on a handover record (TL/BW/INSP/113) which exists in two irreconcilable versions. He was also the Temporary Works Coordinator whose countersignature the certificate requires and which is blank, and the Appointed Person whose recorded authority was required to resume lifting and which does not exist. No person other than Mr Delacroix-Hale is recorded as having checked any of the four pre-conditions.